

IKE SOLUTIONS LLC — LEGAL COMMAND CENTER

Case Ref: IKE-TCA-001 (Rev. 1) | Matter: NJ Tort Claims Act Notice | Claimant: Isionnah/Isirah Howard | Status:
REVISED DRAFT — AWAITING APPROVAL | Prepared: June 06, 2026

♦ Revision 1 — Incorporated per Trustee review: (1) "upon information and belief" qualifiers added to unverified allegations; (2) punitive damages demand against public entities removed per N.J.S.A. 59:9-2(c); (3) litigation-threat sentence softened; (4) verification checklist added; (5) Essex County service analysis added.

NOTICE OF CLAIM UNDER THE NEW JERSEY TORT CLAIMS ACT

Pursuant to N.J.S.A. 59:8-1 *et seq.*

Claimant: Isionnah Howard / Isirah Howard (spelling to be confirmed) • **Against:** City of Newark, Newark Police Department, and associated entities

► PRE-FILING VERIFICATION CHECKLIST — MUST COMPLETE BEFORE MAILING

- | | |
|--|---|
| ☐ Exact arrest/detention date | [FILL IN from complaint, jail record, or hospital admission] |
| ☐ Exact release date | [FILL IN from jail/hospital discharge record] |
| ☐ Claimant full legal spelling | [ISIONNAH or ISIRAH — confirm from arrest record / ID] |
| ☐ Claimant current address | [FILL IN] |
| ☐ Claimant date of birth | [FILL IN] |
| ☐ Hospital name(s) | [Beth Israel / Saint Barnabas / both — confirm from medical record] |
| ☐ Arresting agency confirmed | [NPD — confirm no other agency involved] |
| ☐ Complaint / warrant number | [FILL IN from arrest paperwork] |
| ☐ Public defender / private counsel status | [Call Essex Co. Public Defender: (973) 621-4488] |
| ☐ Prior TCA notice filed? | [YES / NO — if yes, attach copy; if no, proceed] |
| ☐ Rondus recording backed up / secured | [YES / NO — back up to multiple locations before filing] |
| ☐ Boyfriend affidavit signed and notarized? | [YES / NO / IN PROGRESS] |

Essex County actors involved?



[YES / NO — see Section VI for Essex County service analysis]

△ CRITICAL DEADLINE — N.J.S.A. 59:8-8

This Notice must be filed within **90 days** of the date of the incident. Failure to file within 90 days permanently bars civil claims against all named public entities. Note: N.J.S.A. 59:8-9 provides a limited exception for late filing upon a showing of extraordinary circumstances, but this exception is not guaranteed and should not be relied upon. Confirm the exact incident date and file without delay.

I. CLAIMANT INFORMATION

Full Legal Name:	[ISIONNAH HOWARD — or — ISIRAH HOWARD: verify exact spelling from official arrest record, hospital record, or government-issued ID]
Also Known As:	Isionnah Howard / Isirah Howard (alternate spelling — confirm which is official)
Current Address:	[CLAIMANT CURRENT ADDRESS — FILL IN]
Mailing Address for Notices:	[IF DIFFERENT FROM ABOVE]
Phone Number:	[CLAIMANT PHONE]
Attorney / Representative:	[PUBLIC DEFENDER NAME & ADDRESS — or "Pro Se" if none — call (973) 621-4488]
Date of Birth:	[DATE OF BIRTH — FILL IN]

II. RESPONDENT PUBLIC ENTITIES (SERVICE ADDRESSES)

Entity	Service Address	Role
City of Newark Office of the City Clerk	920 Broad Street, Room 314 Newark, NJ 07102	Primary municipal respondent; employer of NPD
City of Newark Office of Corporation Counsel	920 Broad Street, Room 316 Newark, NJ 07102	Legal rep of City; concurrent service required
Newark Police Department	31 Green Street Newark, NJ 07102	Law enforcement entity responsible for detention
	c/o Newark Police Department	Individual officer — recorded statement on departmental policy

Sgt. Rondus, Newark PD
(Individual)

31 Green Street,
Newark, NJ 07102

State of New Jersey
Office of the Attorney
General

Richard J. Hughes
Justice Complex
25 Market Street,
Trenton, NJ 08625

Include if state actors or NJ State Police involved

Essex County / Essex
County Prosecutor's
Office

Veterans' Courthouse
50 West Market Street,
Newark, NJ 07102

[INCLUDE IF Essex County Prosecutor, ECCF, or county
agents participated in arrest, custody, transport, or prosecution
— see Section VI]

Essex County Correctional
Facility

354 Doremus Avenue
Newark, NJ 07105

[INCLUDE IF custody was transferred to ECCF at any point]

III. INCIDENT INFORMATION

Date of Incident:

[EXACT DATE OF ARREST — CRITICAL FOR 90-DAY CLOCK — verify
from complaint, hospital admission, or arrest report]

Date of Release:

[EXACT DATE OF RELEASE — verify from discharge record or jail log]

90-Day Filing Deadline:

[INCIDENT DATE + 90 CALENDAR DAYS]

Location of Arrest:

City of Newark, Essex County, New Jersey

Detention Facilities:

Newark Police Department custody; and hospital custody at [Newark Beth
Israel Medical Center and/or Saint Barnabas Medical Center, Livingston, NJ —
to be confirmed by medical records]

Duration of Detention (alleged):

Upon information and belief, approximately six (6) days (approximately 144
hours) from date of warrantless arrest through date of release, without any
judicial probable cause determination — subject to verification from official
records

Arresting Agency:

Newark Police Department [confirm no additional agency involved]

Complaint / Warrant No.:

[INSERT COMPLAINT OR WARRANT NUMBER]

IV. CIRCUMSTANCES GIVING RISE TO CLAIMS

On or about [INCIDENT DATE], Claimant [Isionnah/Isirah Howard] was arrested by officers of the Newark Police Department without a warrant. Following arrest, Claimant — a medically vulnerable individual who, upon information and belief, requires a tracheostomy suction kit and prescribed medication to sustain respiratory function — was placed in police custody and subsequently detained at [Beth Israel Medical Center

and/or Saint Barnabas Medical Center] under the continuous authority and control of the Newark Police Department.

Upon information and belief, Claimant's detention lasted approximately six (6) days — approximately 144 hours — from the date of warrantless arrest through the date of release. During this period, upon information and belief, Claimant was never brought before a judicial officer for a determination of probable cause, in violation of the constitutional mandate established in *County of Riverside v. McLaughlin*, 500 U.S. 44 (1991), which requires a judicial probable cause determination within 48 hours of a warrantless arrest absent extraordinary circumstances.

Upon information and belief, and as further evidenced by a recorded statement in Claimant's possession, Sergeant Rondus of the Newark Police Department stated on the record that the Department maintains a practice or policy of holding hospitalized detainees in custody without judicial review until the detainee is deemed medically cleared, regardless of the 48-hour probable cause requirement. A transcript or copy of this recording is to be attached hereto or produced upon request.

Upon information and belief, the complaining witness — Claimant's boyfriend — has provided or is prepared to provide a sworn affidavit confirming: (a) the incident involved mutual conduct; (b) he initiated physical contact; and (c) he did not and does not press criminal charges against Claimant. The sufficiency of the evidentiary basis for both the initial arrest and the prolonged detention is therefore disputed.

V. LEGAL CLAIMS ASSERTED

Claim 1 — Unlawful Detention: Violation of 48-Hour Rule

(U.S. Const., Amend. IV & XIV; *County of Riverside v. McLaughlin*, 500 U.S. 44 (1991); 42 U.S.C. § 1983)

Upon information and belief, Claimant was detained for approximately 144 hours without a judicial probable cause hearing, exceeding the constitutionally permissible 48-hour limit by approximately 96 hours. Upon information and belief, this violation was the product of an established departmental policy or custom — as reflected in Sgt. Rondus' recorded statement — and was not an isolated or inadvertent error. Individual officers and the City of Newark, as their employer, bear liability under 42 U.S.C. § 1983 for constitutional deprivations caused by official policy or custom. See *Monell v. Dep't of Social Services*, 436 U.S. 658 (1978).

Claim 2 — Deliberate Indifference to Serious Medical Needs

(U.S. Const., Amend. VIII & XIV; 42 U.S.C. § 1983; *Estelle v. Gamble*, 429 U.S. 97 (1976))

Upon information and belief, Claimant is a tracheostomy patient who requires continuous access to a suction kit and prescribed respiratory medication. Upon information and belief, during her custodial detention, Claimant was denied adequate access to these medically necessary items. Such denial of care for a known, serious medical need constitutes deliberate indifference under the Eighth and Fourteenth Amendments. The duration of the alleged denial — spanning approximately six days — heightens the severity of this claim.

Claim 3 — Americans with Disabilities Act / Rehabilitation Act

(42 U.S.C. § 12132; 29 U.S.C. § 794; *Pennsylvania Dep't of Corr. v. Yeskey*, 524 U.S. 206 (1998))

Upon information and belief, Claimant is a qualified individual with a disability as defined under the ADA. The City of Newark, as a public entity subject to Title II of the Americans with Disabilities Act, upon information and belief, failed to provide reasonable accommodations during Claimant's detention, failed to ensure access to essential medical equipment, and failed to modify its detention policies to avoid discriminatory impact on Claimant's disability-related medical needs.

Claim 4 — Civil Rights Violations / Municipal Policy Liability

(42 U.S.C. § 1983; *Monell v. Dep't of Social Services*, 436 U.S. 658 (1978))

The actions of Sgt. Rondus and Newark Police Department officers, taken under color of state law and, upon information and belief, pursuant to an established departmental policy or custom, deprived Claimant of rights secured by the Fourth and Fourteenth Amendments, including the right to be free from unreasonable seizure, the right to timely judicial review, and the right to substantive and procedural due process. Claimant also asserts claims for failure to train and failure to supervise against the City of Newark as employer.

Claim 5 — New Jersey Civil Rights Act

(N.J.S.A. 10:6-2; N.J. Const. Art. I, ¶¶ 1, 7, 8)

Defendants' actions, as described herein, upon information and belief, violated Claimant's rights under the New Jersey Constitution and the New Jersey Civil Rights Act, including the right to be free from unlawful arrest and prolonged detention without judicial review, the right to adequate medical care while in custody, and the right to equal protection. The New Jersey Civil Rights Act authorizes recovery of attorney's fees by a prevailing party.

VI. INJURIES AND DAMAGES

Physical Injuries:	Upon information and belief, respiratory distress and medical deterioration resulting from denial of tracheostomy suction kit and medication during detention; physical manifestations of prolonged unlawful confinement
Emotional / Psychological:	Severe emotional distress, trauma, fear, and mental anguish arising from prolonged unlawful detention and life-threatening medical neglect
Loss of Liberty:	Unlawful deprivation of physical freedom for a period substantially exceeding constitutional limits
Special Damages:	Medical expenses, lost wages and opportunities, costs of legal representation, all to be quantified upon completion of discovery
Damages Sought:	All compensatory damages, statutory remedies, attorney's fees where authorized by law (42 U.S.C. § 1988; N.J.S.A. 10:6-2(f)), and equitable relief. <i>Note: Punitive damages are not available against public entities under N.J.S.A. 59:9-2(c); punitive or exemplary damages are sought only against individual</i>

actors in their individual capacity where legally permitted under applicable federal or state law.

Amount Claimed:

[To be determined upon completion of discovery and expert assessment — or insert specific demand figure if attorney advises]

VII. EVIDENCE AND WITNESSES KNOWN AT TIME OF FILING

- **Recording of Sgt. Rondus, Newark PD** — Upon information and belief, an audio or video recording in which Sgt. Rondus describes the department's practice of holding hospitalized detainees pending medical clearance without judicial review. Copy and/or transcript to be attached or referenced; original to be preserved and secured immediately in multiple locations.
- **[Complaining Witness / Boyfriend — Full Legal Name]** — Upon information and belief, prepared to provide or has provided a sworn affidavit confirming mutual conduct, that he initiated contact, and that he did not press charges against Claimant. Affidavit should be signed and notarized before filing.
- **Body-Worn Camera (BWC) Footage** — All BWC footage from the arrest and the full period of custodial detention; subject to preservation demand issued herewith and to be obtained via discovery.
- **Computer-Aided Dispatch (CAD) Logs** — NPD dispatch and communications logs from the date of arrest through release; subject to preservation demand and discovery.
- **Jail / Hospital Guard Logs** — All logs documenting custodial supervision during detention at **[Beth Israel and/or Saint Barnabas]**; subject to preservation demand.
- **Hospital Medical Records** — Records from **[Beth Israel Medical Center and/or Saint Barnabas Medical Center]** documenting Claimant's medical condition, treatment history, and any records regarding access to tracheostomy equipment and medication during detention.
- **Arrest Report and Probable Cause Affidavit** — Official NPD arrest report, any probable cause affidavit, and charging documents.
- **Newark PD Internal Policies** — Written policies, procedures, general orders, and directives governing the processing and custody of hospitalized detainees and the 48-hour probable cause requirement; to be obtained via discovery.
- **Detention and Booking Records** — Booking sheets, hold logs, medical clearance authorizations, and all records covering the full period of Claimant's detention.

VIII. ESSEX COUNTY SERVICE ANALYSIS

► Essex County Service: Conditional — Determine Before Filing

Under the NJ Tort Claims Act, each public entity that may bear liability must receive separate notice. If any of the following occurred, serve Essex County and/or the Essex County Prosecutor's Office simultaneously with City of Newark service:

- **Essex County Prosecutor's Office** was involved in authorizing charges, directing the arrest, or supervising the prosecution — serve at: Veterans' Courthouse, 50 West Market Street, Newark, NJ 07102

- **Essex County Correctional Facility (ECCF)** received custody of Claimant at any point during the six-day detention — serve at: 354 Doremus Avenue, Newark, NJ 07105
- **County employees or agents** (e.g., county corrections officers, county medical staff) supervised, transported, or provided care to Claimant during detention
- **Any hospital security acting under government contract** held custody over Claimant on behalf of Newark PD or Essex County

Action Required: [Confirm YES or NO for each item above from arrest paperwork, jail transfer records, and hospital records before mailing. If YES, add Essex County and/or ECCF to service list.]

IX. PRESERVATION DEMAND

Claimant hereby demands that the City of Newark, the Newark Police Department, all named officers, Essex County and its agencies (if applicable), and all affiliated entities **immediately preserve all evidence, records, communications, video footage, medical records, internal policies, dispatch logs, booking records, and electronically stored information** related to Claimant's arrest, detention, and medical treatment as described herein.

This preservation obligation arises as of the date of receipt of this Notice and supersedes any routine records retention or destruction schedules. Any destruction, alteration, loss, or spoliation of evidence following receipt of this Notice will give rise to an adverse inference instruction, sanctions, and additional legal claims for spoliation under applicable New Jersey and federal evidence standards.

X. STATUTORY COMPLIANCE STATEMENT

This Notice is submitted pursuant to N.J.S.A. 59:8-4, which requires a claimant seeking damages from a public entity to include: (a) the claimant's name and address; (b) the date, place, and circumstances of the occurrence; (c) a general description of the injury or loss incurred so far as it may be known at the time of presentation; (d) the name of the public entity and employee(s) causing the injury; and (e) the amount claimed as of the date of presentation. This Notice satisfies each statutory element to the extent information is available at the time of filing. Claimant reserves all rights to supplement this Notice as additional information becomes available through the course of discovery. Nothing herein constitutes a waiver of any claim, right, or remedy.

XI. DEMAND FOR RELIEF

Claimant hereby demands: (1) full compensatory damages for all injuries, losses, and damages described herein; (2) statutory remedies and attorney's fees as authorized by 42 U.S.C. § 1988 and N.J.S.A. 10:6-2; (3) equitable and injunctive relief as appropriate; and (4) punitive or exemplary damages as against individual

actors only, in their individual capacity, where legally permitted under applicable federal or state law. No punitive damages are sought against public entities.

Claimant reserves the right to pursue all available remedies in state or federal court. Nothing in this Notice limits Claimant's right to seek relief in the United States District Court for the District of New Jersey or the Superior Court of New Jersey, Essex County, Vicinage.

XII. CERTIFICATION AND SIGNATURE

I certify that the foregoing statements made by me are true and that I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment. I further certify that this Notice is submitted in good faith and that the facts alleged herein are asserted upon personal knowledge, information, and belief.

Date Filed: _____

Signature of Claimant — **[Isionnah/Isirah Howard — verify spelling]**

Signature of Attorney or Authorized Representative (if applicable)

Print Name: _____

NJ Bar No.: _____

Firm / Address: _____

Phone: _____

XIII. SERVICE INSTRUCTIONS — CERTIFIED MAIL REQUIRED

File via Certified Mail, Return Receipt Requested (CMRRR) — simultaneously to all applicable addresses below on the same date. Retain all tracking numbers, signed green card receipts, and affidavits of mailing. The date of mailing to the United States Postal Service is the operative filing date under New Jersey law. Do not file until all checklist items in Section 0 are completed.

1. **City of Newark — Office of the City Clerk**
920 Broad Street, Room 314, Newark, NJ 07102
2. **City of Newark — Office of Corporation Counsel**
920 Broad Street, Room 316, Newark, NJ 07102

3. Newark Police Department

31 Green Street, Newark, NJ 07102

4. State of NJ — Office of the Attorney General (if state actors involved)

25 Market Street, Trenton, NJ 08625

5. Essex County Prosecutor's Office [INCLUDE IF county actors participated — see Section VIII]

50 West Market Street, Newark, NJ 07102

6. Essex County Correctional Facility [INCLUDE IF custody was transferred to ECCF]

354 Doremus Avenue, Newark, NJ 07105

DRAFT — AWAITING TRUSTEE APPROVAL — DO NOT FILE | Document ID: IKE-TCA-001 (Revision 1) | Prepared by IKE Solutions
Legal Command Center | June 06, 2026

This document is a legal draft for review purposes only. It does not constitute legal advice. Consult a licensed New Jersey attorney before filing.
Nothing in this document shall be filed, served, mailed, or transmitted without the explicit approval of Isiah Tarik Howard, Trustee.